

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE
FOR ENGROSSED
SENATE BILL NO. 1847

By: Green of the Senate

and

Moore of the House

COMMITTEE SUBSTITUTE

An Act relating to Medicaid home- and community-based services; amending 56 O.S. 2021, Section 1017.3, which relates to ADvantage Waiver Program; modifying eligibility criteria; providing certain exception; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 56 O.S. 2021, Section 1017.3, is amended to read as follows:

Section 1017.3. To be eligible for the ADvantage Waiver Program, a person shall:

1. Qualify financially for Medicaid;

2. Be:

a. sixty-five (65) years of age or older, or

b. nineteen (19) to sixty-four (64) years of age and:

- 1 (1) be a physically disabled adult, as determined by
2 the Social Security Administration, ~~age twenty-~~
3 ~~one (21) years or older without~~
- 4 (2) have a developmental disability; provided, the
5 individual does not have an intellectual
6 disability or cognitive impairment related to the
7 developmental disability, or
- 8 (3) have a clinically documented, progressive, and
9 degenerative disease that responds to treatment
10 and previously required hospital- or long-term-
11 care-facility level of care to maintain the
12 treatment regimen to prevent health
13 deterioration;

14 3. Be determined to meet the nursing facility institutional
15 level of care by the ~~Aging Services Division of the~~ Department of
16 Human Services;

17 4. Reside in his or her own home ~~or,~~ a family member's home, or
18 an assisted living center contracted with the Department of Human
19 Services under the ADvantage Waiver Program; and

20 5. Have needs that can be safely met with waiver services and
21 family or community supports.

22 SECTION 2. This act shall become effective July 1, 2026.

23 SECTION 3. It being immediately necessary for the preservation
24 of the public peace, health or safety, an emergency is hereby

1 declared to exist, by reason whereof this act shall take effect and
2 be in full force from and after its passage and approval.

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